

STATE OF NEW YORK

7260--A

2025-2026 Regular Sessions

IN SENATE

April 7, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to electric vehicle charging station fee transparency

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 66-x to read as follows:

3 § 66-x. Electric vehicle charging station fee transparency. 1. "Elec-
4 tric vehicle charging station" shall have the same meaning as in subdi-
5 vision one of section three hundred thirty-nine-ll of the real property
6 law.

7 2. The department is hereby authorized and directed to, no later than
8 June first, two thousand twenty-seven, promulgate rules and regulations
9 for any electric vehicle charging station for which payment is required:

10 (a) establishing fee transparency standards for electric vehicle
11 charging stations, provided such standards shall:

12 (i) require electric vehicle charging stations to clearly post and
13 update the total price for the use of the electric vehicle charging
14 station at the point of sale;

15 (ii) prohibit electric vehicle charging stations from requiring users
16 to pay a subscription fee in order to use such station; provided, howev-
17 er, that owners and operators of public electric vehicle charging
18 stations may have separate price schedules conditional on a subscription
19 or membership; and

20 (iii) prohibit requiring payment via mobile device as the only
21 accepted form of payment; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) defining "significant upgrade", which shall be the basis for
2 determining what changes to electric vehicle charging stations
3 constructed prior to January first, two thousand twenty-eight, including
4 but not limited to, increasing the capacity of the electric vehicle
5 charging station or substantially updating the electric vehicle charging
6 station's user interface or payment system, would trigger compliance
7 with the provisions of this section; and

8 (c) defining "subscription fee" as a recurring payment made to a
9 service or product over a set period, such as a month or a year.

10 3. Standards established pursuant to subdivision two of this section
11 shall apply to publicly available electric vehicle charging stations
12 that have received a rebate, grant, tax benefit or other direct funding
13 from the state, or that have received funds through a commission
14 approved charge on ratepayers, including funds for the purpose of
15 preparing necessary electrical infrastructure for any such electric
16 vehicle charging station.

17 § 2. This act shall take effect immediately and any regulations
18 adopted pursuant to this act shall apply to electric vehicle charging
19 stations constructed, or significant upgrades made thereto, after Janu-
20 ary 1, 2028.